

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

**RESPONDENT OMNI LOGISTICS, LLC'S AND RESPONDENT
EPIC FREIGHT SOLUTIONS LLC'S JOINT RESPONSE IN
OPPOSITION TO TPG'S PETITION FOR RECONSIDERATION OR,
ALTERNATIVELY, MOTION FOR RELIEF FROM ORDER**

Respondent Omni Logistics, LLC ("Omni") and Respondent Epic Freight Solutions LLC ("Epic") (collectively, "Respondents"), through counsel and pursuant to 46 C.F.R. §§ 502.71(b), submit their joint response in opposition to the motion of Complainant TPG Pressure, Inc. ("TPG") for Reconsideration or, Alternatively, Motion for Relief from Order (the "Motion").

I. The Presiding Officer should not Reconsider the Order because the Order Reached the Correct Result.

The Presiding Officer reached the correct result in her May 15, 2024 Order Requiring Parties to Supplement the Record (the "Order") and, therefore, the Presiding Officer should not "reconsider" the Order. Despite apparently having not reviewed TPG's Sur-Reply Opposition¹ before the Presiding Officer issued the Order, the Order embodies sound reasoning. Specifically, the Order held that Respondents' Sur-Reply Motion was "well taken, especially given TPG's filing of a revised shipment chart and damages chart with its reply brief." (Order at 3.)

¹ Capitalized terms used herein but not defined have the meaning ascribed to them in TPG's Motion.

This is unmistakably the correct result because TPG, despite its protestations, *did*, in fact, submit new evidence along with its Reply brief. Indeed, TPG’s Reply brief submission included “Appendix Vol. VI CApp011019 – Damages Chart **Revised for Reply**” and “Appendix Vol. VII CApp011020 – Shipment Chart **REVISED**.” (*See* TPG’s April 9, 2024 filing) (emphasis added). In addition to the revised charts, TPG submitted two new declarations from its counsel, purporting to authenticate each chart. (*See id.*) This is undoubtedly “new evidence” to which Respondents were entitled to respond, given that this evidence was not submitted with TPG’s Opening Brief.

Even if the revised charts did not constitute new evidence (which they do), TPG assigned new meaning to its respective charts in its Reply Brief by undertaking a complete about-face as to which chart contained its claimed damages. As Respondents explained in the Sur-Reply Motion, in its Reply brief, TPG represented for the first time that the so-called “Damages Chart” (as revised) contains TPG’s claimed damages. (April 9, 2024. Burd Decl., ¶ 5.) In its Opening Brief, TPG plainly represented that its “Shipment Chart” contained its claimed damages. (*See* Opening Brief at 30 (the “**Shipping [sic] Chart PFF ¶ 144 sets forth charges invoices by Respondents that are claimed as damages here.**”) (emphasis added); TPG’s Proposed Findings of Fact, ¶ 144 (“**The invoices that are the subject of this action are identified in the Shipment Chart filed herewith (CApp11020)[.]**”) (emphasis added)). Indeed, in each instance where TPG referenced its claimed damages in its Opening Brief or Proposed Findings of Fact, TPG cited its Shipment Chart. (*See, e.g.*, Proposed Findings of Fact ¶¶ 144, 147, 148, 14, 150; Opening Brief at 30, 31.) In fact, nowhere in its Opening Brief did TPG mention let alone explain the significance of its Damages Chart.

TPG accuses Respondents of “feign[ing] confusion, claiming that they initially believed that the Shipment Chart, rather than the Damages Chart contained TPG’s damages[.]” (Unfiled

Sur-Reply Opposition at 5.) But Respondents are not “feigning” anything. Respondents simply took TPG at its word. As clearly demonstrated in the Sur-Reply Motion and above, TPG stated many times over in its Opening Brief that the “Shipment Chart” contained its damages (and said nothing about the Damages Chart). When TPG flip-flopped on the import of its two charts, Respondents were entitled to address that maneuver and its impact on TPG’s claims, including by supplementing the record in response to TPG’s revelation that the Damages Chart contained its claimed damages. Any contrary result would impose real prejudice on Respondents.

For these reasons, Respondents were entitled to file a Sur-Reply, as the Presiding Officer correctly ordered. *Seafair USA LLC v. Sterling Container Line Ltd. et al.*, Docket No. 22-34, 2023 WL 6811143, at *1 (F.M.C. Oct. 10, 2023) (Sur-replies “are routinely permitted in cases where a party is unable to contest matters presented to the court for the first time in the last scheduled pleading.”) (citing *Ben-Kotel v. Howard Univ.*, 319 F.3d 532, 536 (D.C. Cir. 2003)). Therefore, the Presiding Officer should not reconsider the basis for her Order.

II. TPG’s Filing of the Sur-Reply Opposition did not Comply with the Initial Order or Commission Rules.

46 C.F.R. § 502.2(c) provides that “all documents required to be filed in, and correspondence relating to proceedings governed by this part must be addressed and delivered to “Secretary, Federal Maritime Commission, 800 N. Capitol Street, NW., Washington, DC 20573-0001” or to secretary@fmc.gov.” 46 C.F.R. § 502.2(c). Consistent with that rule, the Presiding Officer’s December 6, 2023 Initial Order in this case provides that:

Parties are encouraged to file documents with the Office of the Secretary via email. These emails should include the opposing party and courtesy copies (cc) to the presiding judge at judges@fmc.gov.

(Initial Order, Doc. No. 3.) In short, Commission filing rules and the Initial Order require parties filing documents to submit them to the Office of the *Secretary*.

In its Motion, TPG correctly states that its counsel submitted the Sur-Reply Opposition via email to Judges@FMC.gov with a copy to secretary@FMC.gov.” (Motion at 2.) In other words, TPG did not follow the Commission-mandated filing rules. The Presiding Officer should not reconsider her Order to consider a document that TPG did not properly file in the first instance.

While the Presiding Officer may have discretion to consider untimely or improperly filed documents, even if the Presiding Officer were to do so in this instance, the Presiding Officer should not alter the Order, because the Order is sound and reached the correct result, as discussed above.

III. Conclusion.

Because the Presiding Officer correctly permitted Respondents to file the Sur-Reply and to supplement the record, the Presiding Officer should not reconsider the Order or grant TPG relief from the Order. The Order is based on sound reasoning and reached the correct result. Nothing in TPG’s Sur-Reply Opposition—which was improperly filed—changes that. TPG’s Motion should be denied.

Dated: May 28, 2024

Respectfully submitted,

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Marc S. Blubaugh
MARC S. BLUBAUGH (Ohio Bar No. 0068221)
mblubaugh@beneschlaw.com
NICHOLAS P. LACEY (Ohio Bar No. 0100042)
nlacey@beneschlaw.com
41 S. High Street, Suite 2600
Columbus, OH 43215
Telephone: (614) 223-9300
Facsimile: (614) 223-9330

*Counsel for Respondents Omni Logistics LLC and
Epic Freight Solutions LLC*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 28th day of May, 2024, a true and correct copy of the foregoing
was served via electronic mail on:

Tiffany N. Compres, Esq. (tiffany.compres@pierferd.com)

Gene M. Burd (gene.burd@pierferd.com)

Yine Rodríguez Pérez (yine.rodriguezperez@pierferd.com)

Counsel for Complainant TPG Pressure, Inc.

/s/ Marc S. Blubaugh

Marc S. Blubaugh